THE FACTORIES ACT 1934

(Act XXV of 1934)

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[1]THE FACTORIES ACT, 1934

(Act XXV of 1934)

[20 August 1934]

An Act to consolidate and amend the law regulating labour in factories.

WHEREAS it is expedient to consolidate and amend the law regulating labour in factories;

It is hereby enacted as follows:-

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.– (1) This Act may be called the Factories Act, 1934.

[2][(2) It extends to [3][whole] of [4][the Punjab].]

(3) It shall come into force on the 1st day of January, 1935.

2. Definitions.– In this Act, unless there is anything repugnant in the subject or context,–

(a) "adolescent" means a person who has completed his fifteenth but has not completed his [5][eighteenth] year;

(b) "adult" means a person who has completed his [5][eighteenth] year;

(c) "child" means a person who has not completed his fifteenth year;

(d) "day" means a period of twenty-four hours beginning at midnight;

[6][(dd) "Government" means Government of the Punjab.]

(e) "week" means a period of seven days beginning at mid-night on Saturday night;

(f) "power" means electrical energy, and any other form of energy which is mechanically transmitted and is not generated by human or animal agency;

(g) "manufacturing process" means any process–

(i) for making, altering, repairing, ornamenting, finishing or packing, [7][mending, assembling, fabricating, blending,] or otherwise treating any article or substance with a view to its use, sale, transport, delivery or disposal, or

(ii) for pumping oil, water or sewage, or

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1933, Pt. V, pp. 175 and 176; and for Report of Select Committee, *see ibid*., 1934, Pt. V, pp.44 and 45.

The Act was applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the NWFP (now Khyber Pakhtunkhwa), subject to certain modifications, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950, and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. This Act was extended to the–

(i) Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and also applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p.1499;

(ii) Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended;

(iii) Khairpur State, *see* G.G.O. 5 of 1953, as amended; and

(iv) State of Bahawalpur by the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur (*w.e.f. the 18th September, 1958*), by the Gwadur (Application of Central Laws) Ordinance, 1960 (XXXVII of 1960), s.2.

The Act was applied to the Provincially Administered Tribal Areas or to the parts or those areas to which it did not already, apply *see* Regulation No. I of 1972, s. 2 and Sch.

Although applicable in the Punjab, this Act was originally in the Federal ambit, however, pursuant to the 18th Amendment in the Constitution, it was formally adapted, with amendments, for the Province of Punjab by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960) s.3 and 2nd Sch., (*w.e.f. the 14th October, 1955)*, for the original sub-section (2) as amended by the Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949), (*w.e.f. 28th March, 1949*), and the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 8.

[3]Substituted for the words "the whole" by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]*Ibid*., for the word "Pakistan".

[5]Substituted for the word "seventeenth" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[6]Inserted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

(iii) for generating, transforming or transmitting power [1][, or]

[2][(iv) for construction of building, or

(v) for erection of machinery;]

(h) "worker" means a person employed, [3][directly or through an agency] whether for wages or not, in any manufacturing process, or in cleaning any part of the machinery or premises used for a manufacturing process, or in any other kind of work whatsoever incidental to or connected with the manufacturing process or connected with the subject of the manufacturing process [4][including clerical department within the factory premises];

[5](j) "factory" means any premises, including the precincts thereof whereon [6][five] or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on [7][or is ordinarily carried on with or without the aid of power],

but does not include a mine subject to the operation of the Mines Act, 1923 (IV of 1923);

[8][(k) "machinery" means machines or mechanical arrangements in connection with manufacturing process;]

(l) "occupier" of a factory means the person who has ultimate control over the affairs of the factory:

Provided that where the affairs of a factory are entrusted to a managing agent, such agent shall be deemed to be the occupier of the factory;

(m) where work of the same kind is carried out by two or more sets of workers working during different periods of the day, each of such sets is called a "relay", and the period or periods for which it works is called a "shift"; and

(n) "prescribed" means prescribed by rules made by the [9][[10][* * *] Government] under this Act.

3. References to time of day.– References to time of day in this Act are references–

[11][* * *] [12][* * *],

to [13][* * *] Standard Time, which is five [14][* * *] hours ahead of Greenwich Mean Time, [15][* * *]

[16][* * *]:

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[1]Substituted for the semicolon by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[3]Added by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 2(a).

[4]Substituted for the expression ", but does not include any person solely employed in a clerical capacity in any room or place where no manufacturing process is being carried on" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]Clause (j) after clause (h) is a result of statutory drafting error, making it appear clause (i) to be missing.

[6] Substituted first for the word "twenty" by the Factories (Amendment) Act 1973 (XVI of 1973), s. 2(b)(i), then substituted for the word "ten" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]Substituted by the Factories (Amendment) Act 1973 (XVI of 1973), for the original words, s. 2(b)(ii).

[8]Substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:

"(k) "machinery" includes all plant whereby power is generated, transformed, transmitted or applied;".

[9]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[11]The brackets, letter and words "(a) in British India" omitted by the Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949), (*w.e.f. 28th March 1949*).

[12]The words "excluding Burma" omitted by the Government of India (Adaptation of Indian Laws) Order 1937.

[13]The word "Indian" omitted by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 3.

[14]The words "and a half" omitted *ibid*.

[15]The word "and" omitted by Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949).

[16]Clause (b) omitted by the Government of India (Adaptation of Indian Laws) Order 1937.

Provided that for any area [1][* * *] in which [2][* * *] Standard Time is ordinarily observed the [3][[4][* * *] Government] may make rules:-

(i) specifying the area,

(ii) defining the local mean time ordinarily observed therein, and

(iii) permitting such time to be observed in all or any of the factories situated in the area.

4. Seasonal factories.– (1) For the purposes of this Act, a factory which is exclusively engaged in one or more of the following manufacturing processes, namely, cotton ginning, cotton or jute pressing, the decortication of groundnuts, the manufacture of coffee, indigo, lac, rubber, sugar (including gur) or tea, or any manufacturing process which is incidental to or connected with any of the aforesaid processes, is a seasonal factory:

Provided that the [5][[6][* * *] Government] may, by notification in the [7][official Gazette], declare any such factory in which manufacturing processes are ordinarily carried on for more than one hundred and eighty working days in the year, not to be a seasonal factory for the purposes of this Act.

(2) The [8][[9][* * *] Government] may, by notification in the [10][official Gazette], declare any specified factory in which manufacturing processes are ordinarily carried on for more than one hundred and eighty working days in the year and cannot be carried on except during particular season or at times dependent on the irregular action of natural forces, to be a seasonal factory for the purposes of this Act.

[11]**[5. * * * * * * * * * * * * * * *]**

[12]**[5-A. Establishment or extension of certain factories.–** (1) No factory shall be established or extended for the purpose of carrying on one or more of the manufacturing processes [13][* * * * * * * * *] save with the permission in writing of the [14][* * *] Government or such person or persons as it may direct:

Provided that if an application for such permission has been despatched to the prescribed authority by registered post acknowledgment due and the decision of Government or the prescribed authority has not been communicated to the applicant for six months after the date

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[1]The words "in British India" omitted by the Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949).

[2]The word "Indian" omitted by the Factories (Amendment) Act 1973 (XVI of 1973), s. 3.

[3]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[4]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[5]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]Substituted for "Local Official Gazette" by the Government of India (Adaptation of Indian Laws) Order 1937.

[8]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]Substituted for "Local Official Gazette" by the Government of India (Adaptation of Indian Laws) Order 1937.

[11]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022):

> **"5. Power to apply provisions applicable to factories to certain other places**.– (1) The Government may, by notification in the official Gazette, declare that all or any of the provisions of this Act applicable to factories shall apply to any place wherein a manufacturing process is being carried on or is ordinarily carried on whether with or without the use of power whenever five or more workers are working therein or have worked therein on any one day of the twelve months immediately preceding.
>
> (2) A notification under sub-section (1) may be made in respect of any one such place or in respect of any class of such places or generally in respect of all such places.
>
> (3) Notwithstanding anything contained in clause (j) of section 2, a place, to which all or any of the provisions of this Act applicable to factories are for the time being applicable in pursuance of a declaration under sub-section (1), shall, to the extent to which such provisions are so made applicable but not otherwise, be deemed to be a factory.

[12]Inserted by the Factories (Punjab Amendment) Act, 1940 (VII of 1940), s.2.

[13]The expression "mentioned in the schedule to this Act, or for purposes incidental thereto," omitted by the Factories (Amendment) Act 2022 (XXVI of 2022)

[14]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

of its receipt, the applicant shall be regarded as having obtained that permission; and provided further that a factory shall not be considered as extended within the meaning of this section merely because of any renewal of or addition to existing machinery or appliances within the limits prescribed.

(2) Where an order rejecting an application for the establishment or extension of a factory has been made by an authority other than the [1][* * *] Government an appeal by the applicant shall lie to the [2][* * *] Government within fifteen days of the date on which such order has been communicated to him.

(3) [3][* * * * * * * *]

(4) Any person who contravenes the provisions of sub-section (1) shall be punishable with fine which may extend to [4][five thousand] rupees and in addition, with fine which may extend to [5][one hundred] rupees for each day of the period during which the contravention continues.]

[6][**6. Power to declare departments to be separate factories**.– (1) An authority notified by the Government may, by order in writing direct that different departments or branches of a specified factory shall be treated as separate factories for all or any of the purposes of this Act.

(2) The order under subsection (1) shall not in any case split the number of workers within the same premises of a factory to deprive the workers of their rights under this Act or any other law for the time being in force.]

7. Power to exempt on a change in the factory.– Where the [7][[8][* * *] Government] [9][or an authority notified by the Government] is satisfied that, following upon a change of occupier of a factory or in the manufacturing processes carried on therein, the number of workers for the time being working in the factory is less than twenty and is not likely to be twenty or more on any day during the ensuing twelve months, it may, by order in writing, exempt such factory from operation of this Act:

Provided that any exemption so granted shall cease to have effect on and after any day on which twenty or more workers work in the factory.

[10]**[7-A. Exemption from certain provisions of the Act**.– The provisions of section 14, clause (b) of sub-section (1) of section 15, sections 16, 17, 18, 21, 22, 23, 25 and sub-section (3) of section 33Q shall not apply in the first instance to any factory wherein not more than 19 workers are working or were working on any one day of the 12 months immediately preceding:

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022):

"(3) The Government may, by notification in the official Gazette, add to or exclude from the schedule the name of any manufacturing process it may deem fit, and such addition or exclusion shall take effect as if it had been made by this Act."

[4]Substituted for the figure "5,000" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]Substituted for the figure "100" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[6]Substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:

"6. Power to declare departments to be separate factories.– The Government may, by order in writing, direct that the different departments or branches of a specified factory shall be treated as separate factories for all or any of the purposes of this Act."

[7]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[8]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[9]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[10]Section 7-A added by the Factories (Amendment) Act, 1973 (XVI of 1973), s.5.

Provided that the [1][* * *] Government may, by notification in the official Gazette, apply all or any of the said provisions to any such factory or any class of such factories.]

8. Power to exempt during public emergency.– In any case of public emergency the [2][3][* * *] Government] may, by notification in the [4][official Gazette], exempt any factory from any or all of the provisions of this Act for such period as [5][it] may think fit.

9. Notice to Inspector before commencement of work.– (1) Before work is begun in any factory after the commencement of this Act, or before work is begun in any seasonal factory each season, the occupier shall send to the Inspector a written notice containing–

(a) the name of the factory and its [6][location],
(b) the address to which communications relating to the factory should be sent,
(c) the nature of the manufacturing processes to be carried on in the factory,
(d) the nature and amount of the power to be used, [7][* * *],
(e) the name of the person who shall be the manager of the factory for the purposes of this Act, [8][and
(f) such other particulars as may be prescribed for the purposes of this Act.]

[9][(1-A) In respect of all factories which come within the scope of this Act for the first time on the commencement[10] of the Factories (Amendment) Ordinance, 1972 (XLII of 1972), the occupier shall send a written notice to the Inspector containing particulars specified in sub-section (1) within 30 days of such commencement.]

(2) Whenever another person is appointed as manager, the occupier shall send to the Inspector a written notice of the change within seven days from the date in which the new manager assumes charge.

(3) During any period for which no person has been designated as manager of a factory under this section, or during which the person designated does not manage the factory, any person found acting as manager, or, if no such person is found, the occupier himself, shall be deemed to be the manager of the factory for the purposes of this Act.

[11]**[9-A. Registration certificate for working factory.–** (1) No factory [12][* * * * * * * *] shall be worked or permitted to be worked by a manager or an occupier unless a registration certificate has been granted in respect thereof; and if the factory has been extended after the grant of a registration certificate, unless such certificate has been endorsed in such manner and subject to such conditions as may be prescribed for the grant of such a certificate for an endorsement thereon.

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted for "Governor General in Council" by the Government of India (Adaptation of Indian Laws) Order 1937.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for "Gazette of India" by the Government of India (Adaptation of Indian Laws) Order 1937.

[5]*Ibid*., for "he".

[6]Substituted for the word "situation" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]The word "and" at the end of clause (d) was omitted by the Factories (Amendment) Act, 1944 (XIV of 1944), s. 2.

[8]The word "and" and clause (f) were added, *ibid*.

[9]Added by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 6.

[10]October 19, 1972.

[11]Inserted by the Factories (Punjab Amendment) Act, 1940 (VII of 1940), s.3

[12]The words "carrying on one or more of the manufacturing processes mentioned in the schedule to this Act or for purposes incidental thereto" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

(2) A registration certificate granted under sub-section (1) shall remain in force for one year from the date of the grant or endorsement and shall be renewable automatically on payment of the prescribed fee.]

[1][**9-B. Rules.–** (1) The [2][* * *] Government may, after previous publication, make rules–

(a) as to the authority by which the form in which and the conditions subject to which, a registration certificate may be granted or an endorsement made under sub-section (1) of section 9-A,

(b) prescribing the fee on payment of which a registration certificate may be granted or renewed or an endorsement made under section 9-A,

(c) specifying the limits within which any renewal of or addition to existing machinery or appliances in a factory shall not be regarded as extension of a factory within the meaning of section 5-A (1), and

(d) specifying the person or persons to whom authority may be delegated under section 5-A (1).

(2) In making rules the [3][* * *] Government may prescribe different rates of fees for factories classified according to the number of workers employed in them and the nature of goods produced by them.]

CHAPTER II
THE INSPECTING STAFF

10. Inspectors.– (1) The [4][[5][* * *] Government] may, by notification in the [6][official Gazette], appoint[7] such persons as it thinks fit to be Inspectors for the purposes of this Act within such local limits as it may assign to them respectively.

(2) The [8][[9][* * *] Government] may, by notification as aforesaid, appoint[10] any person to be a Chief Inspector, who shall, in addition to the powers conferred on a Chief Inspector under this Act, exercise the powers of an Inspector throughout the Province.

(3) No person shall be appointed to be an Inspector under sub-section (1) or a Chief Inspector under sub-section (2) or, having been so appointed, shall continue to hold office, who is or becomes directly or indirectly interested in a factory or in any process or business carried on therein or in any patent or machinery connected therewith.

(4) [11][The Deputy Commissioner] shall be an Inspector for his district.

(5) The [12][[13][* * *] Government] may also, by notification as aforesaid, appoint such public officers as it thinks fit to be additional Inspectors for all or any of the purposes of this Act, within such local limits as it may assign to them respectively.

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[1]Inserted by the Factories (Punjab Amendment) Act, 1940 (VII of 1940), s.3.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Substituted for "Local Official Gazette" by the Government of India (Adaptation of Indian Laws) Order 1937.

[7]In suppression of all previous notification in this behalf, Punjab Government appointed certain officers of the Directorate of Labour Welfare (Labour Wing) as Inspectors within specified limits Notification No.8-2 (L-II) 70 of 20 November 1973 Punjab Gazette Pt. I, 7 Dec 1973, P. 1383.

[8]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]In suppression of all previous notification in this behalf, Punjab Government appointed certain officers of the Directorate of Labour Welfare (Labour Wing) as Inspectors within specified limits Notification No.8-2 (L-II) 70 of 20 November, 1973; Punjab Gazette Pt. I, 7 Dec 1973, P. 1383.

[11] Substituted first for the words "Every District Magistrate" by the Factories (Amendment) Act 2012 (XIV of 2012), then for the words "Any Officer notified by the Government" by the Factories (Amendment) Act 2022 (XXVI of 2022).

(6) In any area where there are more Inspectors than one, the [1][2][* * *] Government] may, by notification as aforesaid, declare[3] the powers which such Inspectors shall respectively exercise, and the Inspectors to whom the prescribed notices are to be sent.

(7) Every Chief Inspector and Inspector shall be deemed to be a public servant within the meaning of the Pakistan Penal Code, 1860 (XLV of 1860), and shall be officially subordinate to such authority as the [4][5][* * *] Government] may specify in this behalf.

11. Powers of Inspector.– Subject to any rules made by the [6][7][* * *] Government] in this behalf, an Inspector may, within the local limits for which he is appointed,–

(a) enter, with such assistants (if any), being persons [8][in the service of the state] or of any municipal or other public authority, as he thinks fit, any place which is, or which he has reason to believe to be, used as a factory or capable of being declared to be a factory under the provisions of section 5;

(b) make such examination of the premises and plant and of any prescribed registers, and take on the spot or otherwise such evidence of any persons as he may deem necessary for carrying out the purposes of this Act; and

(c) exercise such other powers as may be necessary for carrying out the purposes of this Act:

Provided that no one shall be required under this section to answer any question or give any evidence tending to criminate himself.

12. Certifying surgeons.– (1) The [9][10][* * *] Government] may appoint[11] such registered medical practitioners as it thinks fit to be certifying surgeons for the purposes of this Act within such local limits as it may assign to them respectively.

(2) A certifying surgeon may authorise any registered medical practitioner to exercise any of his powers under this Act:

Provided that a certificate of fitness for employment granted by such authorized practitioner shall be valid for a period of three months only, unless it is confirmed by the certifying surgeon himself after examination of the person concerned.

Explanation.– In this section a "registered medical practitioner" means any person registered [12][* * *] under any Act of [13][the [14][Federal] legislature [15][* * *]] providing for the maintenance of a

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[12]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[13]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Area of jurisdiction of Labour Officers in Labour Region as Inspectors of Factories demarcated. Notification No. 1-3 (L-II) 74 of June 25, 1974; Punjab Gazette, Extraordinary, July 30, 1974, p. 1001.

[4]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]Substituted for "in the employment of Crown" by the Central Laws (Adaptation) Order 1961 (P.O. 1 of 1961), Art. 2 and Sch. (w.e.f. March 23, 1956).

[9]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[11]All medical officers of Social Security Institution, Punjab declared as certifying surgeons within their own jurisdiction expressly for the purposes of pre-employment test of workers desirous of seeking employment in factories, Notification 1-21 (Lab-II)-72 of 10 May 1974, Punjab Gazette 22May 1974, p. 654.

[12]The words, commas and figure "under the Medical Act, 1858, or any subsequent enactment amending it or" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3., Second Sch.

[13]Substituted for the words "any legislature in British India" by the Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949), (*w.e.f. 28th March, 1949*).

[14]Substituted for "Central" by the Federal Adaptation Order 1975 Art. 2 and Table (*w.e.f. 28th July, 1975*).

register of medical practitioners, and includes, in any area where no such register is maintained, any person declared by the [1][[2][* * *] Government] by notification in the [3][official Gazette], to be a registered medical practitioner for the purposes of this section.

[4][CHAPTER III
HEALTH AND SAFETY

13. Cleanliness.– (1) Every factory shall be kept clean and free from effluvia arising from any drain, privy or other nuisance, and in particular,–

(a) accumulation of dirt and refuse shall be removed daily by sweeping or by any other effective method from the floors and benches of work-rooms and from stair-cases and passages and disposed of in a suitable manner;

(b) the floor of every work-room shall be cleaned at least once in every week by washing, using disinfectant where necessary or by some other effective method;

(c) where the floor is liable to become wet in the course of any manufacturing process to such extent as is capable of being drained, effective means of drainage shall be provided and maintained;

(d) all inside walls and partitions, all ceilings, or tops of rooms and walls, sides and tops or passages and stair-cases shall–

(i) where they are painted or varnished, be repainted or re-varnished at least once in every five years;

(ii) where they are painted or varnished and have smooth impervious surfaces, be cleaned at least once in every fourteen months, by such methods as may be prescribed;

(iii) in any other case, kept whitewashed or colour washed and the whitewashing or colour washing shall be carried out at least once in every fourteen months; and

(e) the dates on which the processes required by clause (d) are carried out shall be entered in the prescribed register.

(2) If, in view of the nature of the operations carried on in a factory it is not possible for the occupier to comply with all or any of the provisions of sub-section (1), the [5][* * *] Government [6][or an authority notified by the Government] may, by an order, exempt such factory or class or description of factories from any of the provisions of that sub-section and specify alternative methods for keeping the factory in a clean state.

14. Disposal of wastes and effluents.– (1) Effective arrangements shall be made in every factory for the disposal of wastes and effluents due to the manufacturing process carried on therein.

(2) The [7][* * *] Government may make rules prescribing the arrangements to be made under sub-section (1) or requiring that the arrangements made in accordance with that sub-section shall be subject to the approval of such authority as may be prescribed.

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[15]The words "or any Provincial Legislature" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Substituted for "Local Official Gazette" by the Government of India (Adaptation of Indian Laws) Order 1937.

[4]Original Chapter III (Section 13 to Section 33), as amended from time to time, was substituted by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), 4th Schedule read with s.2 and 1st Schedule (*w.e.f. 13th April 1972*).

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

15. Ventilation and temperature.– (1) Effective and suitable provisions shall be made in every factory for securing and maintaining in every work-room–

(a) adequate ventilation by the circulation of fresh air, and

(b) such temperature as will secure to workers therein reasonable conditions of comfort and prevent injury to health, and in particular–

(i) the walls and roofs shall be of such material and so designed that such temperature shall not be exceeded but kept as low as practicable;

(ii) where the nature of the work carried on in the factory involves, or is likely to involve, the production of excessively high temperature, such adequate measures as are practicable shall be taken to protect the workers therefrom by separating the process which produces such temperature from the work-room by insulating the hot parts or by other effective means.

(2) The [1][* * *] Government may prescribe a standard of adequate ventilation and reasonable temperature for any factory or class or description of factories or parts thereof and direct that a thermometer shall be provided and maintained in such place and position as may be specified.

(3) If it appears to the [2][* * *] Government [3][or an authority notified by the Government] that in any factory or class or description of factories excessively high temperature can be reduced by such methods as whitewashing, spraying or insulating and screening outside walls or roofs or windows, or by raising the level of the roof, or by insulating the roof either by an air space and double roof or by the use of insulating roof materials, or by other methods, it may [4][direct] such of these or other methods to be adopted in the factory.

16. Dust and fume.– (1) In every factory in which, by reason of the manufacturing process carried on, there is given off any dust or fume or other impurity of such a nature and to such an extent as is likely to be injurious or offensive to the workers employed therein, effective measures shall be taken to prevent its accumulation in any work-room and its inhalation by workers and if any exhaust appliance is necessary for this purpose, it shall be applied as near as possible to the point of origin of the dust, fume or other impurity, and such point shall be enclosed so far as possible.

(2) In any factory no stationary internal combustion engine shall be operated unless the exhaust is conducted into open air and exhaust pipes are insulated to prevent scalding and radiation heat, and no internal combustion engine shall be operated in any room unless effective measures have been taken to prevent such accumulation of fumes therefrom as are likely to be injurious to the workers employed in the work-room.

17. Artificial humidification.– (1) The [5][* * *] Government may, in respect of all factories in which humidity of the air is artificially increased, make rules–

(a) prescribing standards of humidification;

(b) regulating the methods used for artificially increasing the humidity of the air;

(c) directing prescribed tests for determining the humidity of the air to be correctly carried out and recorded; and

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]Substituted for the word "prescribe" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(d) prescribing methods to be adopted for securing adequate ventilation and cooling of the air in the work-rooms.

(2) In any factory in which the humidity of the air is artificially increased, the water used for the purpose shall be taken from a public supply, or other source of drinking water, or shall be effectively purified before it is so used.

(3) If it appears to an Inspector that the water used in a factory for increasing humidity which is required to be effectively purified under sub-section (2) is not effectively purified, he may serve on the Manager of the factory an order in writing specifying the measures which, in his opinion, should be adopted, and requiring them to be carried out before a specified date.

18. Overcrowding.– (1) No work-room in any factory shall be overcrowded to an extent injurious to the health of the workers employed therein.

(2) Without prejudice to the generality of the provisions of sub-section (1) there shall be provided for every worker employed in a work-room–

(a) at least three hundred and fifty cubic feet of space in the case of a factory in existence on the date of the commencement of the Labour Laws (Amendment) Ordinance, 1972; and

(b) at least five hundred cubic feet of space in the case of a factory built after the commencement of the Labour Laws (Amendment) Ordinance, 1972.

Explanation.– For the purpose of this sub-section no account shall be taken of a space which is more than fourteen feet above the level of the floor of the room.

(3) If the Chief Inspector by order in writing so requires, there shall be posted in each work-room of a factory a notice specifying the maximum number of workers who may in compliance with the provisions of this section be employed in the room.

(4) The Chief Inspector may, by order in writing, exempt, subject to such conditions as he may think fit to impose, any work-room from the provisions of this section if he is satisfied that compliance therewith in respect of such room is not necessary for the purpose of health of the workers employed therein.

19. Lighting.– (1) In every part of a factory where workers are working or passing, there shall be provided and maintained–

(a) sufficient and suitable lighting, natural or artificial, or both; and

(b) emergency lighting of special points in work-rooms and passages to function automatically in case of a failure of the ordinary electric supply system.

(2) In every factory all glazed windows and sky-lights used for the lighting of the work-room shall be kept clean on both the outer and inner surfaces and free from obstruction as far as possible under the rules framed under sub-section (3) of section 15.

(3) In every factory effective provisions shall, so far as is practicable, be made for the prevention of–

(a) glare either directly from any source of light or by reflection from a smooth or polished surface; and

(b) the formation of shadows to such an extent as to cause eye strain or risk of accident to any worker.

(4) The [1][* * *] Government may prescribe standards of sufficient and suitable lighting for factories or for any class or description of factories or for any manufacturing process.

[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

20. Drinking Water.– (1) In every factory effective arrangements shall be made to provide and maintain at suitable points conveniently situated for all workers employed therein a sufficient supply of wholesome drinking water.

(2) All such points shall be legibly marked "Drinking Water" in a language understood by the majority of the workers and no such point shall be situated within twenty feet of any washing place, urinal or latrine, unless a shorter distance is approved in writing by the Chief Inspector.

(3) In every factory [1][* * * *] provision shall be made for cooling the drinking water during the hot weather by effective means and for distribution thereof and arrangements shall also be made for–

(a) the daily renewal of water if not laid on; and

(b) a sufficient number of cups or other drinking vessels, unless the water is being delivered in an upward jet.

(4) The [2][* * *] Government may, in respect of all factories or any class or description of factories, make rules for securing compliance with the provisions of this section.

21. Latrines and urinals.– (1) In every factory–

(a) sufficient latrines and urinals of prescribed types shall be provided conveniently situated and accessible to workers at all times while they are in the factory;

(b) enclosed latrines and urinals shall be provided separately for male and female workers;

(c) such latrines and urinals shall be adequately lighted and ventilated and no latrine and urinal shall, unless specially exempted in writing by the Chief Inspector, communicate with any work-room except through an intervening open space or ventilated passage;

(d) all such latrines and urinals shall be maintained in a clean and sanitary condition at all times with suitable detergents or disinfectants or with both;

(e) the floors and internal walls of the latrines and urinals and the sanitary blocks shall, up to a height of three feet, be finished to provide a smooth polished impervious surface; and

(f) washing facilities shall be provided near every sanitary convenience.

(2) The [3][* * *] Government may prescribe the number of latrines and urinals to be provided in any factory in proportion to the number of male and female workers ordinarily employed therein and such further matters in respect of sanitation in the factories as it may deem fit.

22. Spittoons.– (1) In every factory there shall be provided, at convenient places, a sufficient number of spittoons which shall be maintained in a clean and hygienic condition.

(2) The [4][* * *] Government may make rules prescribing the type and the number of spittoons to be provided and their location in any factory and such further matters as may be deemed necessary relating to their maintenance in a clean and hygienic condition.

(3) No person shall spit within the premises of a factory except in the spittoons provided for the purpose. A Notice containing this provision and the penalty for its violation shall be prominently displayed at suitable places in the premises.

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[1]The expression "wherein more than two hundred and fifty workers are ordinarily employed," omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(4) Whosoever spits in contravention of sub-section (3) shall be punishable with a fine not exceeding [1][one hundred] rupees.

23. Precautions against contagious or infections disease.– (1) Each worker in a factory shall be provided with a "Hygiene Card" in which during the [2][month of January and July every year entries] shall be recorded after examination by appointed factory doctor to the effect that the worker is not suffering from any contagious or infectious disease. The fee of such an examination shall be fixed by the [3][* * *] Government and will be borne by the occupier or manager of the factory.

(2) If a worker is found to be suffering from any contagious or infectious disease on an examination under sub-section (1), he shall not be appointed on work till he is declared free of such a disease.

[4]**[23-A. Compulsory vaccination and inoculation.–** Each worker in a factory shall be vaccinated and inoculated against such diseases and at such intervals as may be prescribed. The expenses, if any, of such vaccination and inoculation shall be borne by the occupier or manager of the factory.]

24. Power to make rules for provision of canteens.– (1) The [5][* * *] Government may make rules requiring that in any specified factory wherein [6][one hundred or more] workers are ordinarily employed, an adequate canteen shall be provided for the use of the workers.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for–

(a) the date by which such canteen shall be provided;
(b) the standards in respect of construction, accommodation, furniture and other equipment of the canteen;
(c) the foodstuffs to be served therein and the charges which may be made therefor;
(d) representation of the workmen in the management of the canteens;
(e) enabling, subject to such conditions, if any, as may be specified, the power to make rules under clause (c) to be exercised also by the Chief Inspector.

[7]**[24-A. Welfare Officer.–** In every factory wherein not less than five hundred workers are ordinarily employed, the occupier or manager shall employ such number of welfare officers, having such qualifications, to perform such duties and on such terms and conditions as may be prescribed.]

25. Precautions in case of fire.– (1) Every factory shall be provided with such means of escape in case of fire as may be prescribed.

(2) If it appears to the Inspector that any factory is not provided with the means of escape prescribed under sub-section (1), he may serve on the manager of the factory an order in writing specifying the measures which, in his opinion, should be adopted before a date specified in the order.

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[1]Substituted *ibid*., for the word "two".

[2]Substituted for "first fortnight of every calendar month and entry" by the Factories (Amendment) Act 1973 (XVI of 1973), s.7.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Inserted by the Factories (Amendment) Act 1973 (XVI of 1973), s.8.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Substituted for the words "more than two hundred and fifty" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]Inserted by the Factories (Amendment) Act 1973 (XVI of 1973), s. 9.

(3) In every factory the doors affording exit from any room shall not be locked or fastened so that they can be easily and immediately opened from inside while any person is within the room, and all such doors, unless they are of the sliding type, shall be constructed to open outwards or where the door is between two rooms, in the direction of the nearest exit from the building and such door shall not be locked or obstructed while work is being carried on in the room and shall at all times be kept free from any obstruction.

(4) In every factory every window, door, or other exit affording means of escape in case of fire, other than means of exit in ordinary use, shall be distinctively marked in a language understood by the majority of the workers and in red letters of adequate size or by some other effective and clearly understood sign.

(5) In every factory there shall be provided effective and clearly audible means of giving warning in case of fire to every person employed therein.

(6) A free passage-way giving access to each means of escape in case of fire shall be maintained for the use of all workers in every room of the factory.

(7) In every factory wherein [1][* * *] workers are ordinarily employed in any place above the ground floor, or explosive or highly inflammable materials are used or stored, effective measures shall be taken to ensure that all the workers are familiar with the means of escape in case of fire and have been adequately trained in the routine to be followed in such case.

(8) The [2][* * *] Government may make rules prescribing in respect of any factory, or class or description of factories, the means of escape to be provided in case of fire and the nature and amount of firefighting apparatus to be provided and maintained.

26. Fencing of machinery.– (1) In every factory the following shall be securely fenced by the safeguards of substantial construction which shall be kept in position while the parts of machinery required to be fenced are in motion or in use, namely–

(a) every moving part of a prime mover, and every fly wheel connected to a prime mover;
(b) the headrace and tailrace of every water wheel and water turbine;
(c) any part of a stock-bar which projects beyond head stock of a lathe; and
(d) unless they are in such position or of such construction as to be as safe to every person employed in the factory as they would be if they were securely fenced–
  (i) every part of an electric generator, a motor or rotary convertor;
  (ii) every part of transmission machinery; and
  (iii) every dangerous part of any machinery:

Provided that, in the case of dangerous parts of machinery that cannot be securely fenced by reason of the nature of operation, such fencing may [3][be] substituted by other adequate measures, such as–

(i) devices automatically preventing the operation from coming into contact with the dangerous parts; and
(ii) automatic stopping devices:

Provided further that, for the purpose of determining whether any part of machinery is in such position or is of such construction as to be safe as aforesaid, account shall not be taken of any occasion when it being necessary to make an examination of the machinery while it is in motion or, as a result of such examination, to carry out any mounting or shipping of belts, lubrication or other adjusting operation while the machinery is in motion, such examination or operation is made or carried out in accordance with the provisions of section 27.

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[1]The words "more than ten" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Substituted for the word "by" by the Factories (Amendment) Act 2022 (XXVI of 2022).

(2) Without prejudice to any other provisions of this Act relating to the fencing of machinery, every set screw, bolt and key on any revolving shaft, spindle wheel or pinion and all spur, worm and other toothed or friction gearing in motion with which such worker would otherwise be liable to come into contact, shall be securely fenced to prevent such contact.

(3) The [1][* * *] Government may exempt, subject to such conditions as may be imposed, for securing the safety of the workers, any particular machinery or part from the provisions of this section.

(4) The [2][* * *] Government may, by rules, prescribe such further precautions as it may consider necessary in respect of any particular machinery or part thereof.

27. Work on or near machinery in motion.– (1) Where in any factory it becomes necessary to examine any part of machinery referred to in section 26 while the machinery is in motion, or as a result of such examination, to carry out any mounting or shipping of belts, lubrication or other adjusting operation while the machinery is in motion, such examination or operation shall be made or carried out only by a specially trained adult [3][*] worker wearing [4][protective] clothing whose name has been recorded in the register prescribed in this behalf and while he is so engaged, such worker shall not handle a belt at a moving pulley unless the belt is less than six inches in width and unless the belt joint is either laced or flush with the belt.

(2) No [5][adolescent] shall be allowed in any factory to clean, lubricate or adjust any part of machinery while that part is in motion, or to work between moving parts or between fixed and moving parts of any machinery which is in motion.

(3) The [6][* * *] Government may, by notification in the official Gazette, prohibit, in any specified factory or class or description of factories, the cleaning, lubricating and adjusting by any person, of specified parts of machinery when those parts are in motion.

28. Employment of [7][adolescents] on dangerous machines.– (1) No [8][[9][* *] adolescent] shall work at any machine unless he has been fully instructed as to the dangers arising in connection with the machine and the precautions to be observed and–

(a) has received sufficient training in work at the machine, or

(b) is under adequate supervision by a person who has thorough knowledge and experience of the machine.

(2) This section shall apply to such machines as may be notified by the [10][* * *] [11][Chief Inspector] to be of such a dangerous character that [12][[13][** adolescents] ought not to work at them unless the foregoing requirements are complied with.

29. Striking gear and devices for cutting off power.– (1) In every factory–

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]The word "male" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]Substituted for the word "tight fitting" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]Substituted for the words "woman or child" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]Substituted for the words "young persons" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[8]Substituted for "young person" by the Factories (Amendment) Act 1973 (XVI of 1973), s. 10(a).

[9]The words "child or" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[11]Substituted for the word "Government" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[12]Substituted by the Factories (Amendment) Act 1973 (XVI of 1973), for "young persons", s. 10(b).

[13]The words "children or" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

(a) suitable striking gear or other efficient mechanical appliances shall be provided and maintained and used to move driving belts to and from fast and loose pulleys which form part of the transmission machinery, and such gear or appliances shall be so constructed, placed and maintained as to prevent the belt from creeping back on the fast pulleys;

(b) driving belts when not in use shall not be allowed to rest or ride upon shafting in motion.

(2) In every factory suitable devices for cutting off power in emergencies from running machinery shall be provided and maintained in every work-room.

(3) In respect of factories in operation before the commencement of this [1][the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972)] the provisions of sub-section (2) shall apply only to workrooms in which electricity is used for power.

30. Self-acting machines.– No traversing part of a self-acting machine in any factory and no material carried thereon shall, if the space over which it runs is a space over which any person is liable to pass whether in the course of his employment or otherwise be allowed to run on its outward or inward traverse within a distance of eighteen inches from any fixed structure which is not part of the machine:

Provided that the Chief Inspector may permit the continued use of a machine installed before the commencement of the Labour Laws (Amendment) Ordinance, 1972, which does not comply with the requirements of this section on such conditions for ensuring safety as he may think fit to impose.

31. Casing of new machinery.– (1) In all machinery driven by power and installed in any factory after the commencement of the Labour Laws (Amendment) Ordinance, 1972–

(a) every set screw, belt or key on any revolving shaft, spindle, wheel or pinion shall be so sunk, encased or otherwise effectively guarded as to prevent danger; and

(b) all spur, worm and other toothed or friction gearing which does not require frequent adjustment while in motion shall be completely encased unless it is so situated as to be as safe as it would be if it were completely encased.

(2) Whoever sells or lets on hire or, as agent of a seller or hirer, causes or procures to be sold or let on hire, for use in a factory any machinery driven by power which does not comply with the provisions of sub-section (1), shall be punishable with imprisonment, for a term which may extend to three months, or with fine which may extend to [2][twenty thousand] rupees, or with both.

(3) The [3][* * *] Government may make rules specifying further safe-guards to be provided in respect of any other dangerous part of any particular machine or class or description of machines.

32. Prohibition of employment of women and children near cotton openers.– No [4][adolescent] shall be employed in any part of a factory for pressing cotton in which a cotton opener is at work:

Provided that if the feed end of a cotton opener is in a room separated from the delivery end by a partition extending to the roof or to such height as the Inspector may in any

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[1]Substituted for the word "Ordinance" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for the word "woman or child" by the Factories (Amendment) Act 2022 (XXVI of 2022).

particular case specify in writing, [1][adolescent] may be employed on the side of the partition where the feed end is situated.

33. Cranes and other lifting machinery.– (1) The following provisions shall apply in respect of cranes and all other lifting machinery, other than hoists and lifts in any factory-

(a) every part thereof, including the working gear, whether fixed or movable, ropes and chains and anchoring and fixing appliances shall be–
  (i) of good construction, sound material and adequate strength;
  (ii) properly maintained;
  (iii) thoroughly examined by a competent person at least once in every period of twelve months, and a register shall be kept containing the prescribed particulars of every such examination;
(b) no such machinery shall be loaded beyond the safe working load which shall be plainly marked thereon;
(c) while any person is employed or working on or near the wheel tract of a travelling crane in any place where he would be liable to be struck by the crane effective measures shall be taken to ensure that the crane does not approach within twenty feet of that place or come into accidental contact with live electrical lines;
(d) limit switches shall be provided to prevent overrunning; and
(e) jib cranes, permitting the raising or lowering of the jib shall be provided with an automatic safe load indicator or have attached to them a table indicating the safe working load at corresponding inclinations of the jib.

(2) The [2][* * *] Government may make rules in respect of any lifting machinery or class or description of lifting machinery in factories–

(a) prescribing requirements to be complied with in addition to those set out in this section; or
(b) exempting from compliance with all or any of the requirements of this section, where in its opinion such compliance is unnecessary or impracticable.

33-A. Hoists and lifts.– (1) In every factory–

(a) every hoist and lift shall be–
  (i) of good mechanical construction, sound material and adequate strength;
  (ii) properly maintained, and shall be thoroughly examined by a competent person authorised by the Chief Inspector in this behalf at least once in every period of six months, and a register shall be kept containing the prescribed particulars of every such examination of which a copy shall be forwarded to the Chief Inspector;
(b) every hoistway and liftway shall be sufficiently protected by an enclosure fitted with gates, and the hoist or lift and every such enclosure shall be so constructed as to prevent any person or thing from being trapped between any part of the hoist or lift and any fixed structure or moving part;
(c) the maximum safe working load shall be plainly marked on every hoist or lift, and no load greater than such load shall be carried thereon;
(d) the cage of every hoist or lift used for carrying persons shall be fitted with a gate on each side from which access is afforded to a landing;

[1]Substituted for the word "women and children" by the Factories (Amendment) Act 2022 (XXVI of 2022).
[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(e) every gate referred to in clause (b) or clause (d) shall be fitted with interlocking or other efficient device to secure that the gate cannot be opened except when the cage is at the landing and that the cage cannot be moved unless the gate is closed.

(2) The following additional requirements shall apply to hoists and lifts used for carrying persons and installed or reconstructed in a factory after the commencement of the Labour Laws (Amendment) Ordinance, 1972, namely:-

(a) where the cage is supported by rope or chain there shall be at least two ropes or chains separately connected with the cage and balance weight, and each rope or chain with its attachments shall be capable of carrying the whole weight of the cage together with its maximum load;

(b) efficient devices shall be provided and maintained capable of supporting the cage together with its maximum load in the event of breakage of the ropes, chains or attachments;

(c) an efficient automatic device shall be provided and maintained to prevent the cage from over-running.

(3) The Chief Inspector may permit the continued use of a hoist or lift installed in a factory before the commencement of this Ordinance[1] which does not fully comply with the provisions of sub-section (1) upon such conditions for ensuring safety as he may think fit to impose.

(4) The [2][* * *] Government may, if in respect of class or description of hoist or lift, it is of opinion that it would be unreasonable to enforce any requirement of sub-sections (1) and (2), by order direct that such requirements shall not apply to such class or description of hoist or lift.

33-B. Revolving machinery.– (1) In every room in a factory in which the process of grinding is carried on there shall be permanently affixed to, or placed near, each machine in use a notice indicating the maximum safe working peripheral speed of every grind stone or abrasive wheel, the speed of the shaft or spindle upon which the wheel is mounted and the diameter of the pulley upon such shaft or spindle necessary to secure such safe working peripheral speed.

(2) The speeds indicated in the notice under sub-section (1) shall not be exceeded.

(3) Effective measures shall be taken in every factory to ensure that the safe working peripheral speed of every revolving vessel, cage basket, flywheel, pulley disc or similar appliance driven by power is not exceeded.

33-C. Pressure plant.– (1) If in any factory any part of the plant or machinery used in a manufacturing process is operated at a pressure above atmospheric pressure, effective measures shall be taken to ensure that safe working pressure of such part is not exceeded.

(2) The [3][* * *] Government may make rules providing for the examination and testing of any plant or machinery such as is referred to in sub-section (1) and prescribing such other safety measures in relation thereto as may, in its opinion, be necessary in any factory or class or description of factories.

33-D. Floors, stairs and means of access.– In every factory–

(a) all floors, stairs, passages and gangways shall be of sound construction and properly maintained and where it is necessary to ensure safety, steps, stairs, ladders, passages and gangways shall be provided with substantial handrails;

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[1] Commencement date of the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972) is 13th April 1972.

[2] The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3] *Ibid*.

(b) there shall so far as is reasonably practicable be provided and maintained safe means of access to every place at which any person is at any time required to work;
(c) all places of work from which a worker may be liable to fall a distance exceeding three feet and six inches shall be provided with fencing or other [1][* *] suitable safeguards; and
(d) adequate provision shall be made for the drainage of floors in wet processes and for the use of slatted stands and platforms.

33-E. Pits, sumps, opening in floors, etc.– (1) In every factory, every fixed vessel, sump, tank pit or opening in the ground or in floor which by reason of its depth, situation, construction or contents, is or may be a source of danger, shall be either securely covered or securely fenced.

(2) The [2][* * *] [3][Chief Inspector] may, by order in writing, exempt, subject to such conditions as may be imposed, any factory or class or description of factories in respect of any vessel, sump, tank pit or opening from compliance with the provisions of this section.

33-F. Excessive weights.– (1) No person shall be employed in any factory to lift, carry or move any load so heavy as to be likely to cause him injury.

(2) The [4][* * *] Government may make rules prescribing the maximum weights which may be lifted, carried or moved by adult men, adult women, [5][and adolescents] employed in factories or in any class or description of factories or in carrying on any specified process.

33-G. Protection of eyes.– The [6][* * *] Government may, in respect of any manufacturing process carried on in any factory, by rule require that effective screens or suitable goggles shall be provided for the protection of persons employed on, or in the immediate vicinity of, a process which involves–

(a) risk of injury to the eyes from particles or fragments thrown off in the course of the process, or
(b) risk to the eyes by reason of exposure to excessive light or heat.

33-H. Powers to require specifications of defective parts or tests of stability.– If it appears to the Inspector that any building or part of a building, or any part of the ways, machinery or plant in a factory, is in such a condition that it may be dangerous to human life or safety, he may serve on the Manager of the factory an order in writing, requiring him before a specified date–

(a) to furnish such drawings, specifications and other particulars as may be necessary to determine whether such building, ways, machinery or plant can be used with safety, or
(b) to carry out such tests as may be necessary to determine the strength or quality of any specified parts and to inform the Inspector of the results thereof.

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[1]The expression "(there)[?]" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).
[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).
[3]Substituted for the word "Government" by the Factories (Amendment) Act 2022 (XXVI of 2022).
[4]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).
[5]Substituted for the words "adolescents and children" by the Factories (Amendment) Act 2022 (XXVI of 2022).
[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

33-I. Safety of building, machinery and manufacturing process.– (1) If it appears to the Inspector that any building or part of a building or any part of the ways, machinery or plant or manufacturing process in a factory is in such a condition that it is dangerous to human health or safety, he may serve on the Manager of the factory an order in writing specifying the measures which, in his opinion, should be adopted, and requiring them to be carried out before a specified date.

(2) If it appears to the Chief Inspector that the requisitions made under sub-section (1) are not satisfactorily fulfilled thereby involving exposure of workers to serious hazards, he may serve on the Manager of the factory an order in writing, containing a statement of the grounds of his opinion, prohibiting until the danger is removed, the employment, in or about the factory or part thereof, of any person whose employment is not in his opinion reasonably necessary for the purpose of removing the danger.

(3) If it appears to the Inspector that the use of any building or part of a building or of any part of the ways, machinery or plant or manufacturing process in a factory involves imminent danger to human health or safety he may serve on the Manager of factory an order in writing prohibiting, until the danger is removed, the employment, in or about the factory or part thereof, of any person whose employment is not in his opinion reasonably necessary for the purpose of removing the danger.

(4) Nothing in sub-section (2) or (3) shall be deemed to affect the continuance in the employment of the factory of a person whose employment in or about the factory or part thereof is prohibited under that sub-section.

33-J. Power to make rules to supplement this Chapter.– The [1][* * *] Government may make rules requiring that–

(1) In any factory or in any class or description of factories, such further devices and measures for securing the safety of the persons employed therein as it may deem necessary shall be adopted; and

(2) Work on a manufacturing process carried on with the aid of power shall not be begun in any building or part of a building erected or taken into use as a factory until a certificate of stability in the prescribed form and signed by a person possessing the prescribed qualifications has been sent to the Chief Inspector.

33-K. Precautions against dangerous fumes.– (1) In any factory no person shall enter or be permitted to enter any chamber, tank, vat, pit, pipe, flue or other confined space in which dangerous fumes are likely to be present to such an extent as to involve risk of persons being overcome thereby, unless it is provided with a manhole of adequate size or other effective means of egress.

(2) No portable electric light of voltage exceeding twenty-four volts shall be permitted in any factory for use inside any confined space such as is referred to in sub-section (1) and, where the fumes present are likely to be inflammable, a lamp or light other than of flame proof construction shall not be permitted to be used in such confined space.

(3) No person in any factory shall enter or be permitted to enter any confined space such as is referred to in sub-section (1) until all practicable measures have been taken to remove any fumes which may be present and to prevent ingress of fumes and unless either–

(a) a certificate in writing has been given by a competent person, based on a test carried out by himself, that the space is free from dangerous fumes and fit for persons to enter, or

[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(b) the worker is wearing suitable breathing apparatus and a belt securely attached to a rope, the free end of which is held by a person standing outside the confined space.

(4) Suitable breathing apparatus, reviving apparatus and belts and ropes shall in every factory be kept ready for instant use beside any such confined space as aforesaid which any person has entered, and all such apparatus shall be periodically examined and certified by a competent person to be fit for use; and a sufficient number of persons employed in every factory shall be trained and practised in the use of all such apparatus and in the method of restoring respiration.

(5) No person shall be permitted to enter in any factory, any boiler furnace, boiler flue, chamber, tank, vat, pipe or other confined space for the purpose of working or making any examination therein until it has been sufficiently cooled by ventilation or otherwise to be safe for persons to enter.

(6) The [1][* * *] Government may make rules prescribing the maximum dimensions of the manholes referred to in sub-section (1) and may, by order in writing, exempt, subject to such conditions as it may think fit to impose, any factory or class or description of factories from compliance with any of the provisions of this section.

33-L. Explosive or inflammable dust, gas, etc.– (1) Where in any factory any manufacturing process produces dust, gas, fume or vapour of such character and to such extent as to be likely to explode on ignition, all practicable measures shall be taken to prevent any such explosion by–

(a) effective enclosure of the plant or machinery used in the process;

(b) removal or prevention of the accumulation of such dust, gas, fume or vapour;

(c) exclusion or effective enclosure of all possible sources of ignition.

(2) Where in any factory the plant or machinery used in a process such as is referred to in sub-section (1) is not so constructed as to withstand the probable pressure which such an explosion as aforesaid would produce, all practicable measures shall be taken to restrict the spread and effects of the explosion by the provision in the plant or machinery of chokes, baffles, vents or other effective appliances.

(3) Where any part of the plant or machinery in a factory contains any explosive or inflammable gas or vapour under pressure greater than atmospheric pressure, that part shall not be opened except in accordance with the following provisions, namely:-

(a) before the fastening of any joint of any pipe connected with the part of the fastening of the cover of any opening into the part is loosened, any flow of the gas or vapour into the part or any such pipe shall be effectively stopped by a stop-valve or other means;

(b) before any such fastening as aforesaid is removed, all practicable measures shall be taken to reduce the pressure of the gas or vapour in the part or pipe to atmospheric pressure;

(c) where any such fastening as aforesaid has been loosened or removed, effective measures shall be taken to prevent any explosive or inflammable gas or vapour from entering the part or pipe until the fastening has been secured, or, as the case may be, securely replaced:

Provided that the provisions of this sub-section shall not apply in the case of plant or machinery installed in the open air.

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(4) No plant, tank or vessel which contains or has contained any explosive or inflammable substance shall be subjected in any factory to any welding, brazing, soldering or cutting operation which involves the application of heat or to any drilling or other operation which is likely to create heat or sparks, unless adequate measures have first been taken to remove such substance and any fumes arising therefrom or to render such substance and fumes non-explosive or non-inflammable, and no such substance shall be allowed to enter such plant, tank or vessel after any such operation until the metal has cooled sufficiently to prevent any risk of igniting the substance.

(5) The [1][* * *] Government may by rules exempt, subject to such conditions as may be prescribed, any factory or class or description of factories from compliance with all or any of the provisions of this section.

33-M. Power to exclude children.– [2][(1) All factories shall abide by the provisions of the Punjab Restriction on Employment of Children Act 2016 (L of 2016).]

(2) If it appears to the Inspector that the presence in any factory or part of a factory of children [3][* * * * * *] may be dangerous to them or injurious to their health, he may serve on the manager of the factory an order in writing directing him to prevent the admission of [4][*] children to the factory or any part of it.

33-N. Notice of certain accidents.– Where in any factory an accident occurs which causes death, or which causes any bodily injury whereby any person injured is prevented from resuming his work in the factory during the forty-eight hours after the accident occurred, or which is of any nature which may be prescribed in this behalf, the manager of the factory shall send notice thereof to such authorities, and in such form and within such time, as may be prescribed.

[5]**33-P. Appeals.–** (1) The manager of a factory on whom an order in writing by an Inspector has been served under the provisions of this Chapter, or the occupier of the factory, may, within thirty days of the service of the order, appeal against it to the [6][* * *] Government, or to such authority as the [7][* * *] Government may appoint in this behalf, and the [8][* * *] Government or appointed authority may, subject to rules made in this behalf by the [9][* * *] Government, confirm, modify or reverse the order.

(2) The appellate authority may, and if so required in the petition or appeal shall, hear the appeal with the aid of assessors, one of whom shall be appointed by the appellate authority and the other by such body representing the industry concerned as the [10][* * *] Government may prescribe in this behalf:

Provided that if no assessor is appointed by such body, or if the assessor so appointed fails to attend at the time and place fixed for hearing the appeal, the appellate authority may,

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:
"(1) The Government may make rules prohibiting the admission to any specified class of factories, or to specified parts thereof, of children who cannot be lawfully employed therein."

[3]The words "who cannot be lawfully employed therein" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]The word "such" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]While substituting Chapter III by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), appearing of Section 33-P after Section 33-N is a result of statutory drafting error, making it look as if Section 33-O is missing.

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

unless satisfied that the failure to attend is due to sufficient cause, proceed to hear the appeal without the aid of such assessor, or if it thinks fit, without the aid of any assessor.

(3) Except in the case of an appeal against an order under sub-section (3) of section 33-I or sub-section (2) of section 33-M the appellate authority may, suspend the order appealed against pending the decision of the appeal, subject however to such conditions as to partial compliance or the adoption of temporary measures as it may choose to impose in any case.

33-Q. Additional power to make health and safety rules relating to shelters during rest.– (1) The [1][* * *] Government may make rules requiring that in any specified factory wherein more than one hundred [2][* *] workers are ordinarily employed, an adequate shelter shall be provided for the use of workers during periods of rest, and such rules may prescribe the standards of such shelters.

(2) *Rooms for children.*– The [3][* * *] Government may also make rules–

(a) requiring that in any specified factory, wherein more than fifty [4][*] workers are ordinarily employed, a suitable room shall be reserved for the use of children under the age of six years belonging to such [1][workers], and

(b) prescribing the standards for such rooms and the nature of the supervision to be exercised over the children therein.

(3) *Certificates of stability.*– The [5][* * *] Government may also make rules, for any class of factories and for the whole or any part of the Province, requiring that work on a manufacturing process carried on with the aid of power shall not be begun in any building or part of a building erected or taken into use as a factory after the commencement of this Act, until a certificate of stability in the prescribed form, signed by a person possessing the prescribed qualifications, has been sent to the Inspector.

(4) *Hazardous operations.*– Where the [6][* * *] Government is satisfied that any operation in a factory exposes any persons employed upon it to a serious risk of bodily injury, poisoning or disease, it may make rules applicable to any factory or class of factories in which the operation is carried on–

(a) specifying the operation and declaring it to be hazardous,

(b) prohibiting or restricting the employment of [7][* *] adolescents [8][*] children upon the operation,

(c) providing for the medical examination of persons employed or seeking to be employed upon the operation and prohibiting the employment of persons not certified as fit for such employment, and

(d) providing for the protection of all persons employed upon the operation or in the vicinity of the places where it is carried on.

[9][(5) The [10][* * *] Government may also make rules requiring the occupiers or managers of factories to maintain stores of first-aid appliances and provide for their proper custody and use.]]

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[1]Substituted for the word "women" by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]The words "and fifty" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]The word "women" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]The expression "women," omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[8]The word "or" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[9]Added by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 11.

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

CHAPTER IV
RESTRICTIONS ON WORKING HOURS OF ADULTS

34. Weekly hours.– No adult worker shall be [1][allowed or required] to work in a factory for more than [2][forty-eight] hours in any week, or, where the factory is a seasonal one, for more than [3][fifty] hours in any week:

Provided that an adult worker in a [4][* * *] factory engaged in work which for technical reasons must be continuous throughout the day may work for fifty-six hours in any week.

35. Weekly holiday.– (1) No adult worker shall be [5][allowed or required] to work in a factory on a Sunday unless–

(a) he has had or will have a holiday for a whole day on one of the three days immediately before or after that Sunday, and

(b) the manager of the factory has, before that Sunday or the substituted day, whichever is earlier–

(i) delivered a notice to the office of the Inspector of his intention to require the worker to work on the Sunday and of the day which is to be substituted, and

(ii) displayed a notice to that effect in the factory:

Provided that no substitution shall be made which will result in any worker working for more than ten days consecutively without a holiday for a whole day.

(2) Notices given under section (1) may be cancelled by a notice delivered to the office of the Inspector and a notice displayed in the factory not later than the day before the Sunday or the holiday to be cancelled, whichever is earlier.

(3) Where, in accordance with the provisions of sub-section (1), any worker works on a Sunday and has had a holiday on one of the three days immediately before it, that Sunday shall, for the purpose of calculating his weekly hours of work, be included in the preceding week.

[6]**[35-A. Compensatory holidays.–** (1) Where, as a result of the passing of an order or the making of a rule under the provisions of this Act exempting a factory or the workers therein from the provisions of section 35, a worker is deprived of any of the weekly holidays for which provision is made by sub-section (1) of that section, he shall be allowed, as soon as circumstances permit, compensatory holidays of equal number to the holidays so lost.

(2) The [7][* * *] Government may make rules prescribing the manner in which the holidays, for which provision is made in sub-section (1), shall be allowed.]

36. Daily hours.– No adult worker shall be [8][allowed or required] to work in a factory for more than [9][nine] hours in any day:

Provided that a male adult worker in a seasonal factory may work [10][ten] hours in any day.

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[1]Substituted for "allowed" by the Factories (West Pakistan Amendment) Ordinance, 1966 (VI of 1966), s. 2.

[2]Substituted for "fifty-four" by section 2 of the Factories (Amendment) Act, 1946 (X of 1946), (*w.e.f. Aug. 1, 1946*).

[3]Substituted *ibid*., for "sixty".

[4]The word "non-seasonal" omitted by the Factories (Amendment) Act, 1947 (V of 1947), s. 3.

[5]Substituted for "allowed" by the Factories (West Pakistan Amendment,) Ordinance, 1966 (VI of 1966), s. 2.

[6]Section 35-A inserted by the Factories (Amendment) Act, 1945 (III of 1945), s. 2. (*w.e.f. Jan 1st 1946*).

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]Substituted for "allowed" by the Factories (West Pakistan Amendment) Ordinance, 1966 (VI of 1966), s. 2.

[9]Substituted for "ten" by the Factories (Amendment) Act, 1946 (X of 1946), s. 3 (*w.e.f. Aug. 1, 1946*).

[10]Substituted *ibid*., for "eleven".

37. Intervals for rest.– The periods of work of adult workers in a factory during each day shall be fixed either–

(a) so that no period shall exceed six hours, and so that no worker shall work for more than six hours before he has had an interval for rest of at least one hour; or

(b) so that no period shall exceed five hours, and so that no worker shall work for more than five hours before he has had an interval for rest of at least half an hour, or for more than eight and a half hours before he has had at least two such intervals.

38. Spread over.– The periods of work of an adult worker in a factory shall be so arranged that along with his intervals for rest under section 37, they shall not spread over more than [1][twelve] hours in any day, or where the factory is a seasonal one, eleven and a half hours in any day, save with the permission of the [2][[3][* * *] [4][Chief Inspector]] and subject to such conditions as it may impose, either generally or in the case of any particular factory.

39. Notice of periods for work for Adults and preparation thereof.– (1) There shall be displayed and correctly maintained in every factory in accordance with the provisions of subsection (2) of section 76 a Notice of Periods for Work for Adults showing clearly the periods which adult workers may be required to work.

(2) The periods shown in the notice required by sub-section (1) shall be fixed beforehand in accordance with the following provisions of this section and shall be such that workers working for those periods would not be working in contravention of any of the provisions of sections 34, 35, 36, 37 and 38.

(3) Where all the adult workers in a factory are required to work within the same periods, the manager of the factory shall fix those periods for such workers generally.

(4) Where all the adult workers in a factory are not required to work within the same periods, the manager of the factory shall classify them into groups according to the nature of their work.

(5) For each group which is not required to work on a system of shifts, the manager of the factory shall fix the periods within which the group may be required to work.

(6) Where any group is required to work on a system of shifts and the relays are not to be subject to pre- determined periodical changes of shift, the manager of the factory shall fix the periods within which each relay of the group may be required to work.

(7) Where any group is to work on a system of shifts and the relays are to be subject to predetermined periodical changes of shifts, the manager of the factory shall draw up a scheme of shifts where under the periods within which any relay of the group may be required to work and the relay which will be working at any time of the day shall be known for any day.

(8) The [5][[6][* * *] Government] may make rules prescribing forms for the notice of Periods for Work for Adults and the manner in which it shall be maintained.

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[1]Substituted for "ten and-a-half hours, or where the factory is a seasonal one, eleven and-a-half" by the Finance Act 2006 (III of 2006), w.e.f. 1st July 2006.

[2]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for the word "Government" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

40. Copy of Notice of Periods for Work to be sent to Inspector.– (1) A copy of the Notice referred to in sub-section (1) of section 39 shall be sent in duplicate to the Inspector within fourteen days after the commencement of this Act, or, if the factory begins work after the commencement of this Act, before the day on which it begins work.

(2) Any proposed change in the system of work in a factory which will necessitate a change in the Notice shall be notified to the Inspector in duplicate before the change is made, and, except with the previous sanction of the Inspector, no such change shall be made until one week has elapsed since the last change.

41. Register of Adult Workers.– (1) The manager of every factory shall maintain a Register of Adult Workers showing–

[1][(a) the name and date of birth of each adult worker in the factory and his dependents along with their Computerized National Identity Card Numbers;]

(b) the nature of his work,

(c) the group, if any, in which he is included,

(d) where his group works on shifts, the relay to which he is allotted, and

(e) such other particulars as may be prescribed:

Provided that, if the Inspector is of opinion that any muster roll or register maintained as part of the routine of a factory gives in respect of any or all of the workers in the factory the particulars required under this section, he may, by order in writing, direct that such muster roll or register shall to the corresponding extent be maintained in place of and be treated as the Register of Adult Workers in that factory:

Provided further that, where the [2][[3][* * *] Government] is satisfied that the conditions of work in any factory or class of factories are such that there is no appreciable risk of contravention of the provisions of this Chapter in the case of that factory or factories of that class, as the case may be, the [4][[5][* * *] Government] may, by written order, exempt, on such conditions as it may impose, that factory or all factories of that class, as the case may be, from the provisions of this section.

(2) The [6][[7][* * *] Government] may make rules prescribing the form of the Register of Adult Workers [8][including online registry of Adult Workers], the manner in which it shall be maintained and the period for which it shall be preserved.

42. Hours of work to correspond with Notice under section 39 and Register under section 41.– No adult worker shall be [9][allowed or required] to work otherwise than in accordance with the Notice of Periods for Work for Adults displayed under sub-section (1) of section 39 and the entries made before hand against his name in the Register of Adult Workers maintained under section 41.

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[1]Substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:
"(a) the name and age of each adult worker in the factory,"

[2]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[9]Substituted for "allowed" by the Factories (West Pakistan Amendment) Ordinance, 1966 (VI of 1966), s. 2.

43. Powers to make rules, exempting from restrictions.– (1) The [1][[2][* * *] Government] may make rules defining the persons who hold positions of supervision or management or are employed in a confidential position in a factory, and the provisions of this Chapter, [3][other than the provisions of clause (b) of sub-section (1) of section 45 and of the proviso to that sub-section], shall not apply to any person so defined.

(2) The [4][[5][* * *] Government] may make rules for adult workers providing for the exemption[6], to such extent and subject to such conditions as may be prescribed in such rules,–

(a) of workers engaged on urgent repairs- from the provisions of sections 34, 35, 36, 37 and 38;

(b) of workers engaged in work in the nature of preparatory or complementary work which must necessarily be carried on outside the limits laid down for the general working of the factory- from the provisions of sections 34, 36, 37 and 38;

(c) of workers engaged in work which is necessarily so intermittent that the intervals during which they do not work while on duty ordinarily amount to more than the intervals for rest required under section 37- from the provisions of sections 34, 36, 37 and 38.

(d) of workers engaged in any work which for technical reasons must be carried on continuously throughout the day – from the provisions of sections 34, 35, 36, 37 and 38;

(e) of workers engaged in making or supplying articles of prime necessity which must be made or supplied every day- from the provisions of section 35;

(f) of workers engaged in a manufacturing process which cannot be carried on except during fixed seasons- from the provisions of section 35;

(g) of workers engaged in a manufacturing process which cannot be carried on except at times dependent on the irregular action of natural forces- from the provisions of section 35 and section 37; and

(h) of workers engaged in engine-rooms or boiler-houses- from the provisions of section 35.

(3) Rules made under sub-section (2) providing for any exemption may also provide for any consequential exemption from the provisions of sections 39 and 40 which the [7][[8][* * *] Government] may deem to be expedient, subject to such conditions as it may impose.

(4) In making rules under this section the [9][[10][* * *] Government] shall prescribe the maximum limits for the weekly hours of work for all classes of workers, and any exemption given, other than an exemption under clause (a) of sub-section (2), shall be subject to such limits.

(5) Rules made under this section shall remain in force for not more than three years.

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[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Inserted by the Factories (Amendment) Act, 1935 (XI of 1935), s. 2.

[4]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]For Punjab Factories (Adult Exemption) Rules, 1974, sec Notification 1-6 (L-II)/71 dated June 14, 1974, Punjab Gazette Extraordinary, dated August 22, 1974, p.1089.

[7]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[8]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[9]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

44. Power to make orders exempting from restrictions.– (1) Where the [1][2][* * *] Government] is satisfied that, owing to the nature of the work carried on or to other circumstances, it is unreasonable to require that the periods of work of any adult workers in any factory or class of factories should be fixed beforehand, it may, by written order, relax or modify the provisions of sections 39 and 40 in respect of such workers to such extent and in such manner as it may think fit, and subject to such conditions as it may deem expedient to ensure control over periods of work.

(2) The [3][4][* * *] Government], or subject to the control of the [5][6][* * *] Government] the Chief Inspector, may, by written order[7], exempt, on such conditions as it or he may deem expedient, any or all the adult workers in any factory, or group or class of factories, from any or all of the provisions of sections 34, 35, 36, 37, 38, 39 and 40, on the ground that the exemption is required to enable the factory or factories to deal with an exceptional pressure of work.

(3) Any exemption given under sub-section (2) in respect of weekly hours of work shall be subject to the maximum limits prescribed under sub-section (4) of section 43.

[8][(4) An order under sub-section (2) shall remain in force for such period, not exceeding two months from the date on which notice thereof is given to the manager of the factory, as may be specified in the order:

Provided that if in the opinion of the [9][* * *] Government the public interest so requires, the [10][* * *] Government may from time to time, by notification in the official Gazette, extend the operation of any such order for such period, not exceeding six months at any one time, as may be specified in the notification.]

45. Further restrictions on the employment of women.– (1) The provisions of this Chapter shall, in their application to women workers in factories, be supplemented by the following further restrictions, namely-

(a) no exemption from the provisions of section 36 may be granted in respect of any woman; and

(b) no woman shall be allowed to work in a factory except between 6 A. M. and 7 P.M.:

[11][Provided that if the employer arranges for safe and secure transport facilities, a woman with her consent may also work in evening and night shifts.]

[12][* * *]

(2) The [13][14][* * *] Government] may make rules providing for the exemption from the above restrictions, to such extent and subject to such conditions as it may prescribe, of

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[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[4]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[5]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[6]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]For an instance of such Order, *see* the Punjab Gazette, 1951, Pt. I, p.87.

[8]Substituted by the Factories (Amendment) Act, 1946 (X of 1946), S. 5. (*w.e.f. 1st August, 1946*), for the original sub-section (4).

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[11]First substituted for the first proviso by Finance Act 2006 (III of 2006), (*w.e.f. 1st July 2006*), then substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:

"Provided that if the employer arranges for the transport facilities, a woman with her consent may work upto 10.00 p.m. in two shifts"

[12]Omitted by Finance Act 2006 (III of 2006), (*w.e.f. 1st July 2006*).

[13]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[14]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

women working in fish-curing or fish-canning factories where the employment of women beyond the said hours is necessary to prevent damage to or deterioration in any raw material.

(3) Rules made under sub-section (2) shall remain in force for not more than three years.

46. Special provision for nights-shifts.– Where a worker works on a shift which extends over midnight, the ensuing day for him shall be deemed to be the period of twenty-four hours beginning when such shift ends, and the hours he has worked after midnight shall be counted towards the previous day:

Provided the [1][[2][* * *] [3][Chief Inspector]] may, by order in writing, direct that in the case of any specified factory or any specified class of workers therein the ensuing day shall be deemed to be the period of twenty-four hours beginning when such shift begins and that the hours worked before midnight shall be counted towards the ensuing day.

47. Extra pay for overtime.– [4][(1) Where a worker–

(a) in a non-seasonal factory works for more than nine hours in any day or for more than forty-eight hours in any week, or

(b) in a seasonal factory works for more than nine hours in any day or for more than fifty hours in any week,–

he shall be entitled in respect of the overtime worked to pay at the rate of twice his ordinary rate of pay.]

[5][**Explanation**.– In this sub-section, 'ordinary rate of pay' means all remuneration capable of being expressed in terms of money which would, if the terms of the contract of employment, express or implied, were fulfilled, be payable to a worker in respect of his employment or of work done in such employment, but does not include–

(i) the value of any house-accommodation, supply of light, water, medical attendance or other amenity;

(ii) any contribution paid by the employer to any pension fund or provident fund;

(iii) any travelling allowance or the value of travelling concession; or

(iv) any gratuity, bonus or share in the profits of the factory.]

(3) Where any workers are paid on a piece rate basis, the [6][[7][* * *] Government] in consultation with the industry concerned may for the purposes of this section fix time rates as nearly as possible equivalent to the average rate of earnings of those workers, and the rates so fixed shall be deemed to be the ordinary rates of pay of those workers for the purposes of this section.

(4) The [8][[9][* * *] Government] may prescribe the registers that shall be maintained in a factory for the purpose of securing compliance with the provisions of this section.

[10]**[47-A. Over-time:–** Any adult worker may be required to work overtime, provided that such working conforms to the provisions of this Act and the rules made thereunder.]

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[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Substituted for the word "Government" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]Substituted for the original sub-sections (1) and (2) by the Factories (Amendment) Act, 1946 (X of 1946), s. 7. (w.e.f. 1st August 1946).

[5]Explanation added by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 13.

[6]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[7]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]Added by the Factories (West Pakistan Amendment) Ordinance, (VI of 1966), S.3.

48. Restriction on double employment.– No adult worker shall be allowed to work in any factory on any day on which he has already been working in any other factory, save in such circumstances as may be prescribed.

49. Control of overlapping shifts.– The [1][[2][* * *] Government] may make rules providing that in any specified class or classes of factories work shall not be carried on by a system of shifts so arranged that more than one relay of workers is engaged in work of the same kind at the same time save with the permission of the [3][[4][* * *] Government] and subject to such conditions as it may impose, either generally or in the case of any particular factory.

[5][CHAPTER IV-A
HOLIDAYS WITH PAY

49-A. Application of Chapter.– (1) The provisions of this Chapter shall not apply to a seasonal factory.

(2) The provisions of this Chapter shall not operate to the prejudice of any rights to which a worker may be entitled under any other enactment, or under the terms of any award, agreement or contract of service.

49-B. Annual holidays.– (1) Every worker who has completed a period of twelve months continuous service in a factory shall be allowed, during the subsequent period of twelve months, holidays for a period of [6][* * *] fourteen consecutive days, inclusive of the day or days, if any, on which he is entitled to a holiday under sub-section (1) of section 35.

(2) If a worker fails in any one such period of twelve months to take the whole of the holidays allowed to him under sub-section (1), any holidays not taken by him shall be added to the holidays to be allowed to him under sub-section (1) in the succeeding period of twelve months, so however that the total number of holidays which may be carried forward to a succeeding period shall not exceed [7][* * *] fourteen.

(3) If a worker entitled to holidays under sub-section (1) is discharged by his employer before he has been allowed the holidays, or if, having applied for and having been refused the holidays, he quits his employment before he has been allowed the holidays, the employer shall pay him the amount payable under section 49-C in respect of the holidays.

Explanation.– A worker shall be deemed to have completed a period of twelve months continuous service in a factory notwithstanding any interruption in service during those twelve months brought about by sickness, accident or authorised leave not exceeding ninety days in the aggregate for all three, or by a lock-out, or by a strike which is not an illegal strike, or by intermittent periods of involuntary unemployment not exceeding thirty days in the aggregate; and authorised leave shall be deemed not to include any weekly holiday allowed under section 35 which occurs at beginning or end of an interruption brought about by the leave.

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[1]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[2]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[3]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[4]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[5]Chapter IV-A (Section 49-A to Section 49-G) was inserted by the Factories (Amendment) Act, 1945 (III of 1945), s.3 (*w.e.f. 1st January, 1946*).

[6]The words "ten or, if a child" omitted by the Factories (Amendment) Act, 1973 (XVI of 1973), s.14(a).

[7]*Ibid.* s. 14(b).

49-C. Pay during annual holiday.– Without prejudice to the conditions governing the day or days, if any, on which the worker is entitled to a holiday under sub-section (1) of section 35, the worker shall, for the remaining days of the holidays allowed to him under section 49-B, be paid at a rate equivalent to the daily average of his wages as defined in the Payment of Wages Act, 1936 (IV of 1936), for the days on which he actually worked during the preceding three months, exclusive of any earning in respect of overtime.

49-D. Payment when to be made.– A worker who has been allowed holidays under section 49-B shall, before his holidays begin, be paid half the total pay due for the period of holidays.

49-E. Power of Inspector to act for worker.– An Inspector may institute proceedings on behalf of any worker to recover any sum required to be paid under this Chapter by an employer which the employer has not paid.

49-F. Power to make rules.– (1) The [1][* * *] Government may make rules to carry into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing power rules may be made under this section prescribing the keeping by employers of registers showing such particulars as may be prescribed and requiring such registers to be made available for examination by Inspectors.

(3) [2][* * * * * * * * * * * *]

49-G. Exemption of factories from the provisions of this Chapter.– Where the [3][* * *] Government is satisfied that the leave rules applicable to workers in a factory provide benefits substantially similar to those for which this Chapter makes provision, it may, by written order, exempt the factory from the provisions of this Chapter.]

[4]**[49-H. Casual leave and sick leave.–** (1) Every worker shall be entitled to casual leave with full pay for ten days in a year.

(2) Every worker shall be entitled to sixteen days, sick leave on half average pay in a year.

49-I. Festival Holidays.– (1) Every worker shall be allowed holidays with pay on all days declared by the [5][* * *] Government to be festival holidays.

(2) A worker may be required to work on any festival holiday but one day additional compensatory holiday with full pay and a substitute holiday shall be allowed to him in accordance with the provisions of section 35.]

[6]**[49-J. Paternity leave.**– Every worker shall be allowed seven days paternity leave, with full pay, commencing on or immediately before the date of delivery of his child:

Provided that the benefit of full pay shall be limited to the birth of his two children and the worker shall apply for paternity leave seven days in advance of the expected date of delivery of child.]

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Sub-section (3) omitted by the Adaptation Order, 1964, Art. 2 and Sch.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Added by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 15.

[5]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

CHAPTER V
SPECIAL PROVISIONS FOR ADOLESCENTS [1][* *][2]

50. Prohibition of employment of [3][*] children.– No child who has not completed his [4][fifteenth] year shall be allowed to work in any factory.

51. Non-adult workers to carry tokens giving reference to certificates of fitness.– No [5][* * * * * * * * *] adolescent shall be allowed to work in any factory unless–

(a) a certificate of fitness granted to him under section 52 is in the custody of the manager of the factory, and

(b) he carries while he is at work a token giving a reference to such certificate.

52. Certificates of fitness.– (1) A certifying surgeon shall, on the application of any [6][[7][* *] adolescent] who wishes to work in a factory, or of the parent or guardian of such person, or of the manager of the factory in which such person wishes to work, examine such person and ascertain his fitness for such work.

(2) The certifying surgeon after examination, may grant to such person, in the prescribed form,–

(a) a certificate of fitness to work in a factory as [8][an adolescent], if he is satisfied that such person has completed his [9][fifteenth] year, that he has attained the prescribed physical standards (if any), and that he is fit for such work; or

(b) a certificate of fitness to work in a factory as an adult, if he is satisfied that such person has completed his [10][eighteenth] year and is fit for full day's work in a factory.

(3) A certifying surgeon may revoke any certificate granted under sub-section (2) if, in his opinion, the holder of it is no longer fit to work in the capacity stated therein in a factory.

(4) Where a certifying surgeon or a practitioner authorised under sub-section (2) of section 12 refuses to grant a certificate or a certificate of the kind requested, or revokes a certificate, he shall, if so requested by any person who could have applied for the certificate, state his reasons in writing for so doing.

53. Effect of certificate granted to adolescent.– (1) An adolescent who has been granted a certificate of fitness to work in a factory as an adult, under clause (b) of sub-section (2) of section 52, and who, while at work in a factory, carries a token giving reference to the certificate, shall be deemed to be an adult for all the purposes of Chapter IV.

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[1]The words "AND CHILDREN" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]Employment of Children Act, 1991 replaces Employment of Children Act, 1938 and may supersede or amend some of these old provisions regarding children and adolescents.

[3]The word "young" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]First substituted for "twelfth" by the Labour Laws (Amendment) Act, 1977 (XVII of 1977), s.2 and First Schedule, then substituted for the word "fourteenth" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]The words "child who has completed his fourteenth year and no" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[6]Substituted for the words "young person" by the Factories (Amendment) Act, 1973 (XVI of 1973), s.16.

[7]The words "child or" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[8]Substituted for the words "a child" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[9]First substituted for "twelfth" by the Labour Laws (Amendment) Act, 1977 (XVII of 1977), s.2 and First Schedule, then substituted for the word "fourteenth" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[10]Substituted for the word "fifteenth" by the Factories (Amendment) Act 2022 (XXVI of 2022).

(2) An adolescent who has not been granted a certificate of fitness to work in a factory as an adult under sub-section (2) of section 52 shall, notwithstanding his age, be deemed to be a child for the purposes of this Act.

[1][**54.** * * * * * * * * * * * *]
[2][**55.** * * * * * * * * * * * *]
[3][**56** * * * * * * * * * * * *]
[4][**57.** * * * * * * * * * * * *]

58. Power to require medical examination.– Where an Inspector is of opinion–

(a) that any person working in a factory without a certificate of fitness is a child or an adolescent, or

(b) that [5][an] adolescent working in a factory with a certificate is no longer fit to work in the capacity stated therein,

he may serve on the manager of the factory a notice requiring that such person, or that such [6][an adolescent], shall be examined by a certifying surgeon or by a practitioner authorised under sub-section (2) of section 12, and such person, [7][and] adolescent shall not, if the Inspector so directs, be allowed to work in any factory until he has been so examined and has been granted a certificate of fitness or a fresh certificate of fitness, as the case may be.

59. Power to make rules.– The [8][[9][* * *] Government] may make rules–

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[1]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022);

"**54. Restrictions on the working hours of a child.–** (1) No child shall be allowed to work in a factory for more than five hours in any day.

(2) The hours of work of a child shall be so arranged that they shall not spread over more than seven-and-a-half hours in any day.

(3) No child or adolescent shall be allowed to work in a factory except between 6 A. M. and 7 P. M.:

Provided that the Government] may, by notification in the official Gazette, in respect of any class or classes of factories and for the whole year or any part of it, vary these limits to any span of thirteen hours between 5 A. M. and 7.30 P.M.

(4) The provisions of section 35 shall apply also to child workers, but no exemption from the provisions of that section may be granted in respect of any child.

(5) No child shall be allowed to work in any factory on any day on which he has already been working in another factory."

[2]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022);

"**55. Notice of Periods for Work for Children.–** (1) There shall be displayed and correctly maintained in every factory, in accordance with the provisions of sub-section (2) of section 76, a Notice of Periods for Work for Children, showing clearly the periods within which children may be required to work.

(2) The periods shown in the Notice required by sub-section (1) shall be fixed beforehand in accordance with the method laid down for adults in section 39 and shall be such that children working for those periods would not be working in contravention of section 54.

(3) The provisions of section 40 shall apply also to the Notice of Periods for Work for Children.

(4) The Government may make rules prescribing forms for the Notice of Periods for Work for Children and the manner in which it shall be maintained."

[3]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022);

"**56. Register of Child Workers.–** (1) The manager of every factory in which children are employed shall maintain a Register of Child Workers showing–

(a) the name and age of each child worker in the factory,

(b) the nature of his work,

(c) the group, if any, in which he is included,

(d) where his group works on shifts, the relay to which he is allotted,

(e) the number of his certificate of fitness granted under section 52, and

(f) such other particulars as may be prescribed.

(2) The Government] may make rules prescribing the form of the Register of Child Workers, the manner in which it shall be maintained, and the period for which it shall be preserved."

[4]The following omitted by the Factories (Amendment) Act 2022 (XXVI of 2022);

"**57. Hours of work to correspond with Notice and Register.–** No child shall be allowed to work otherwise than in accordance with the Notice of Periods for Work for Children displayed under sub-section (1) of section 55 and the entries made before hand against his name in the Register of Child Workers maintained under sub-section (1) of section 56."

[5]Substituted for the words "a child or" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[6]Substituted for the expression "child or adolescent, as the case may be" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]Substituted for the words "child or" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[8]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[9]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

(a) prescribing the forms of certificate of fitness to be granted under section 52, providing for the grant of duplicates in the event of loss of original certificates, and fixing the fees which may be charged for such certificates and such duplicates;
(b) prescribing the physical standards to be attained by [1][* *] adolescents;
(c) regulating the procedure of certifying surgeons under this Chapter, and specifying other duties which they may be required to perform in connection with the employment of [1][* *] adolescents in factories; and
(d) providing for any other matter which may be expedient in order to give effect to the provisions of this Chapter.

[2]**[59-A. Provisions to be in addition to Act [3][L of 2016].–** The provisions of this Chapter shall be in addition to, and not in derogation of, the provisions of the [4][Punjab Restriction on Employment of Children Act, 2016 (L of 2016)].]

CHAPTER VI
PENALTIES AND PROCEDURE

60. Penalty for contravention of Act and rules.– If in any factory–
(a) there is any contravention–
  (i) of any of the provisions of sections 13 to [5][32] inclusive, or
  (ii) of any order made under any of the said sections, or
  (iii) of any of the said sections read with rules made in pursuance thereof under [6][section 33], or
  (iv) of any rules made under any of the said sections or under [7][sections 33J and 33Q], or
  (v) of any condition imposed under sub-section (3) of section [8][33P], or
(b) any person is allowed to work in contravention–
  (i) of any of the provisions of sections 34 to 38 inclusive, 42, 45 [9][, 48, 49H and 49I], or
  (ii) of any rule made under any of the said sections, or under section 49, or
  (iii) of any condition attached to any exemption granted under section 43 or section 44 or section 45 or to any permission granted under section 38 or section 49, or
(c) there is any contravention of any of the provisions of sections 39 to 41 inclusive or of any rule made under section 39, section 41 or section 47, or of any condition attached to any exemption granted under section 41 or to any modification or relaxation made under section 44, or
(d) any person is not paid any extra pay to which he is entitled under the provisions of section 47, or

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[1]The words "children and" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]Substituted by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 19, for Chapter VA, which had been inserted by the Factories (Amendment) Act, 1940 (XVII of 1940), s. 2 and amended by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), s 2 and 1st Sch. (*w.e.f. 13th April, 1972*).

[3]Substituted for the expression "V of 1991" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]First substituted for the words and figures "Employment of Children Act, 1938 (XXVI of 1938)" by the Factories (Amendment) Act 2012 (XIV of 2012), and then substituted for the expression "Employment of Children Act, 1991 (V of 1991)" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[5]Substituted by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), s.2 and 1st Schedule for "29".

[6]Substituted *ibid*., s.2 and 1st Schedule for "clause (a) of section 32".

[7]*Ibid*. for "clause (b), clause (c) or clause (g) of section 32 or section 33".

[8]*Ibid* for "31".

[9]Substituted by the Labour Laws (Amendment) Act, 1975 (XI of 1975), s.2 and Sch. (*w.e.f. 25th January 1975*), for the word and figures "and 48".

(e) any adolescent [1][* *] is allowed to work in contravention of any of the provisions of sections 50, 51 [2][* * * * * *] and 58, or

(f) there is any contravention of [3][rules made under clause (d) of section 59], [4][or]

[5][(g) there is any contravention of sections 49-B, 49-C, or 49-D, or of any rule made under section 49-F,]

the manager and occupier of the factory shall each be punishable with fine which may extend to [6][twenty thousand] rupees:

Provided that if both the manager and the occupier are convicted, the aggregate of the fines in respect of the same contravention shall not exceed this amount.

[7][**61.Enhanced penalty in case of previous conviction.–** If any person who has been convicted of any offence punishable under clauses (b) to (g) of section 60 is again guilty of an offence involving a contravention of the same provision, he shall be punishable on the second conviction with imprisonment for a term which may extend to six months and with fine which may extend to thirty thousand rupees and shall not be less than five thousand rupees and if he is again so guilty, shall be punishable on the third or any subsequent conviction with imprisonment for a term which may extend to six months and with fine which may extend to forty thousand rupees and shall not be less than ten thousand rupees:

Provided that for the purposes of this section, no cognizance shall be taken of any conviction made more than two years before the commission of the offence which is being punished.]

62. Penalty for failure to give notice of commencement of work or of change of manager.– An occupier of a factory who fails to give any notice required by sub-section (1) [8][, sub-section (1-A)] or sub-section(2) of section 9 shall be punishable with fine which may extend to [9][ten thousand] rupees.

[10][**62-A. Penalty for failure to register**.– A Manager or an occupier who contravenes the provisions of section 9-A or the conditions on which a registration certificate is granted or an endorsement made shall be punishable with fine which may extend to two thousand rupees, or if he has previously been convicted of an offence under that section, to five thousand rupees on the second conviction; and for every subsequent offence the maximum amount of fine which may be imposed shall be enhanced by one thousand rupees subject to a maximum of ten thousand rupees.]

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[1]The words "or child" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]The comma and figures ", 54, 55, 57" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[3]Substituted for the expression "section 55 or section 56 or of any rules made under either of these sections, or under clause (d) of section 59" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]The word "or" added by the Factories (Amendment) Act, 1945 (III of 1945), s. 4. (*w.e.f. January, 1. 1946*).

[5]Clause (g) inserted by the Factories (Amendment) Act, 1945 (III of 1945), s. 4. (*w.e.f. January, 1. 1946*).

[6]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]Substituted by the Factories (Amendment) Act 2012 (XIV of 2012).

[8]Inserted by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 20.

[9]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[10]First inserted by the Punjab Factories (Amendment) Act, 1940 (VII of 1940), and then substituted by the Factories (Amendment) Act 2022 (XXVI of 2022), for the following:

"62-A. Penalty for failure to register.– A Manager or an occupier who contravenes the provisions of section 9-A or the conditions on which a registration certificate is granted or an endorsement made shall be punishable with fine which may extend to five hundred rupees, or if he has previously been convicted of an offence under that section of the said Act, to one thousand rupees on the second conviction. For every subsequent offence the maximum amount of fine which may be imposed shall be enhanced by five hundred rupees subject to a maximum of two thousand and five hundred rupees."

63. Penalty for obstructing Inspector.– Whoever wilfully obstruct an Inspector in the exercise of any power under section 11, or fails to produce on demand by an Inspector any registers or other documents in his custody kept in pursuance of this Act or of any of the rules made thereunder, or conceals or prevents any worker in a factory from appearing before or being examined by an Inspector, shall be punishable with fine which may extend to [1][twenty thousand] rupees.

64. Penalty for failure to give notice of accidents.– A manager of a factory who fails to give notice of an accident as required under section [2][33-N] shall be punishable with fine which may extend to [3][twenty thousand] rupees.

65. Penalty for failure to make returns.– If in respect of any factory any return is not furnished as required under section 77, the manager and the occupier of the factory shall each be liable to fine which may extend to [4][ten thousand] rupees:

Provided that if both the manager and the occupier are convicted, the aggregate of the fines inflicted shall not exceed this amount.

66. Penalty for smoking or using naked light in vicinity of inflammable material.– Whoever smokes, or uses a naked light or causes or permits any such light to be used in the vicinity of any inflammable material in a factory shall be punishable with fine which may extent to [5][five thousand] rupees.

Exception.– This provision does not extend to the use, in accordance with such precautions as may be prescribed, of a naked light in the course of a manufacturing process.

67. Penalty for using false certificate.– Whoever knowingly uses or attempts to use, as a certificate granted to himself under section 52, a certificate granted to another person under that section, or who, having procured such a certificate, knowingly allows it to be used, or an attempt to use it to be made, by another person, shall be punishable with fine which may extend to [6][one thousand] rupees.

68. Penalty on guardian for permitting double employment of a child.– If a child works in a factory [7][* * * * * * * *], the parent or guardian of the child or the person having custody of or control over him, or obtaining any direct benefit from his wages, shall be punishable with fine which may extend to [8][one thousand] rupees, unless it appears to the Court that the child so worked without the consent, connivance or willful default of such parent, guardian or person.

69. Penalty for failure to display certain notices.– A manager of a factory who fails to display the notice required under sub-section (1) of section 76 or by any rule made under this

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[1]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted for "30" by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), s. 2 and First Schedule.

[3]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[5]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[6]Substituted for the word "twenty" by the Factories (Amendment) Act 2012 (XIV of 2012).

[7]The words "on any day on which he has already been working in another factory" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[8]First substituted for the word "twenty" by the Factories (Amendment) Act 2012 (XIV of 2012), and then substituted for the word "five hundred" by the Factories (Amendment) Act 2022 (XXVI of 2022).

Act, or to display or maintain any such notice as required by sub-section (2) of that section, shall be punishable with fine which may extend to [1][five thousand] rupees.

70. Determination of "occupier" for purposes of this Chapter.– (1) Where the occupier of a factory is a firm or other association of individuals, any one of the individual partners or members thereof may be prosecuted and punished under this Chapter for any offence for which the occupier of the factory is punishable:

Provided that the firm or association may give notice to the Inspector that it has nominated one of its member who is resident in [2][Pakistan] to be the occupier of the factory for the purposes of this Chapter, and such individual shall so long as he is so resident be deemed to be the occupier for the purposes of this Chapter until further notice cancelling his nomination is received by the Inspector or until he ceases to be a partner or member of the firm or association.

(2) Where the occupier of a factory is a company, any one of the directors thereof, or, in the case of a private company, any one of the shareholders thereof, may be prosecuted and punished under this Chapter for any offence for which the occupier of the factory is punishable:

Provided that the company may give notice to the Inspector that it has nominated a director, or, in the case of a private company, a shareholder, who is resident in either case in [3][Pakistan] to be the occupier of the factory for the purposes of this Chapter, and such director or shareholder shall so long as he is so resident be deemed to be the occupier of the factory for the purposes of this Chapter until further notice cancelling his nomination is received by the Inspector or until he ceases to be a director or shareholder.

71. Exemption of occupier or manager from liability in certain cases.– (1) Where the occupier or manager of a factory is charged with an offence against this Act, he shall be entitled upon complaint duly made by him to have any other person whom he charges as the actual offender brought before the Court at the time appointed for hearing the charge; and if, after the commission of the offence has been proved, the occupier or manager of the factory proves to the satisfaction of the Court–

(a) that he has used due diligence to enforce the execution of this Act, and

(b) that the said other person committed the offence in question without his knowledge, consent or connivance, that other person shall be convicted of the offence and shall be liable to the like fine as if he were the occupier or manager, and the occupier or manager shall be discharged from any liability under this Act.

(2) When it is made to appear to the satisfaction of the Inspector at any time prior to the institution of the proceedings–

(a) that the occupier or manager of the factory has used all due diligence to enforce the execution of this Act, and

(b) by what person the offence has been committed, and

(c) that it has been committed without the knowledge, consent or connivance of the occupier or manager, and in contravention of his orders, the Inspector shall proceed against the person whom he believes to be the actual offender without first proceeding

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[1]Substituted for the words "five hundred" by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (*w.e.f. the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been substituted by the Adaptation of Central Acts and Ordinances Order 1949 (GGO 4 of 1949), for "British India".

[3]*Ibid*

against the occupier or manager of the factory, and such person shall be liable to the like fine as if he were the occupier or manager.

72. Presumption as to employment.– If a child over the age of six years is found inside any part of a factory [1][* * * * * *], he shall, until the contrary is proved, be deemed to be working in the factory.

73. Evidence as to age.– (1) When an act or omission would, if a person were under or over a certain age, be an offence punishable under this Act, and such person is in the opinion of Court apparently under or over such age, the burden shall be on the accused to prove that such person is not under or over such age.

(2) [2][In the absence of Form-B or Family Registration Certificate issued by National Database and Registration Authority (NADRA),] [3][a] declaration in writing by a certifying surgeon relating to a worker that he has personally examined him and believes him to be under or over the age set forth in such declaration shall, for the purposes of this Act, be admissible as evidence of the age of that worker.

74. Cognizance of offences.– (1) No prosecution under this Act, except a prosecution under section 66, shall be instituted except by or with the previous sanction of the Inspector.

(2) No Court inferior to that [4][* * *] of a Magistrate of the first class shall try any offence against this Act or any rule or order made thereunder, other than an offence under section 66 or section 67.

(3) [5][* * * * * * * * * * *]

75. Limitation of prosecutions.– No Court shall take cognizance of any offence under this Act or any rule or order thereunder, other than an offence under section 62 or section 64, unless complaint thereof is made within six months of the date on which the offence is alleged to have been committed:

Provided that when the offence consists of disobeying a written order made by an Inspector, complaint thereof may be made within twelve months of the date on which the offence is alleged to have been committed.

CHAPTER VII
SUPPLEMENTAL

76. Display of factory notices.– (1) In addition to the notices required to be displayed in any factory by this Act or the rules made thereunder, there shall be displayed in every factory a notice containing such abstracts of this Act and of the rules made thereunder, in English [6][and Urdu languages] and in the vernacular of the majority of the workers as the [7][[8][* * *] [9][Chief Inspector may direct]].

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[1]The words "in which children are working" omitted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[2]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[3]Substituted for capital letter "A" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[4]The words "of a Presidency Magistrate or" omitted by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and IInd Sch.

[5]Sub-Section 3 omitted by the Factories (Amendment) Act, 1973 (XVI of 1973), s. 21, which was previously added by the Labour Laws (Amendment) Ordinance, 1972 (IX of 1972), s. 2 and First Schedule.

[6]Inserted by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]Substituted for "Local Government" by the Government of India (Adaptation of Indian Laws) Order 1937.

[8]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[9]Substituted for the words "Government may prescribe" by the Factories (Amendment) Act 2022 (XXVI of 2022).

(2) All notices required to be displayed in a factory shall be displayed at some conspicuous place at or near the main entrance to the factory, and shall be maintained in a clean and legible condition.

77. Power of [1][* * *] **Government to make rules.–** The [2][[3][* * *] Government] may make rules requiring occupiers or managers of factories to submit such returns occasional or periodical, as may in [4][its] opinion be required for the purposes of this Act.

78. [5][* * * * * * * * * * * * *]

79. Publication of rules.– (1) All rules made under this Act shall be subject to the condition of previous publication, and the [6][date] to be specified under clause (3) of section 23 of the General Clauses Act, 1897 (X of 1897), shall not be less than three months from the date on which the draft of the proposed rules was published.

(2) All such rules shall be published in [7][* * *] the [8][official Gazette] [9][* * *] and shall, unless some later date is appointed, come into force on the date of such publication.

[10]**[80. Application of the Act to Government Factories**.– This Act shall apply to all factories including factories wholly or partly owned or controlled by the Government, Federal Government or any other Government.]

81. Protection to persons acting under this Act.– No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

82. [11][* * * * * * * * * * * * *]

[12]**[* * * * *]**

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[1]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[2]Substituted for "Governor General in Council" by the Government of India (Adaptation of Indian Laws) Order 1937.

[3]The word "Provincial" omitted by the Factories (Amendment) Act 2012 (XIV of 2012).

[4]Substituted by the Government of India (Adaptation of Indian Laws) Order 1937, for "his".

[5]Section 78 "Control of rules made by Local Governments**",** repealed by the Government of India (Adaptation of Indian Laws) Order 1937.

[6]Substituted for the word "dale" by the Factories (Amendment) Act 2022 (XXVI of 2022).

[7]The words "the Gazette of India or" omitted by the Government of India (Adaptation of Indian Laws) Order 1937.

[8]Substituted *ibid*., for "Local Official Gazette".

[9]The words "as the case may be" omitted *ibid*.

[10]Substituted by the Factories (Amendment) Act 2012 (XIV of 212).

[11]Section 82 "Repeal and savings**",** repealed by the Repealing and Amending Act, 1937 (XX of 1937) s. 3 and 2nd Sch.

[12]The following Schedule omitted by the Factories (Amendment) Act 2022 (XXVI of 2022):

"**THE SCHEDULE**

Schedule mentioned in section 5-A (1)

1. Textile:
   (a) Cotton.
   (b) Woollen.
2. Glass.
3. Cement and allied products.
4. Chemicals including medicines.
5. Hydrogenated oils edible and others
[6. * * * * * * * * * * * * *]
7. Hosiery manufacture.
8. Floor mills.
9. Steel rolling mills."